

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DAVID MAJETTE,

Index No.:

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK, P.O. LOGAN PAYANO Shield
#00816 and PO ANTHONY ASSENT Shield #00306,

Defendants.
-----X

TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on plaintiff's attorneys within 20 days after service of this summons, exclusive of the day of service, or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

The basis of venue is county of occurrence.

Plaintiff resides at 1460 College Ave., Bronx, NY 10457

DATED: New York, New York
July 13, 2017

Yours, etc.,


STEVEN C. RAUCHBERG, P.C.
Attorney for Plaintiff
501 Seventh Avenue, Suite 520
New York, NY 10018
(212) 971-9090

DEFENDANT'S ADDRESS(ES):

City of New York, Municipal Building, New York, NY 10007
PO Logan Payano, 44th Prec., 2 E 169th St, Bronx, NY 10452
PO Anthony Assent, 44th Prec., 2 E 169th St, Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DAVID MAJETTE,

Index No.:

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, P.O. LOGAN PAYANO Shield
#00816 and PO ANTHONY ASSENT Shield #00306,

Defendants.

-----X

Plaintiff DAVID MAJETTE, by his attorneys, STEVEN C. RAUCHBERG, P.C., as for
his complaint herein alleges the following upon information and belief:

1. That at all times herein mentioned, plaintiff DAVID MAJETTE was a resident of the County of Bronx, City and State of New York.
2. That at all the times hereinafter mentioned, defendant THE CITY OF NEW YORK (hereinafter referred to as "CITY"), was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. At all times herein mentioned, the defendant, THE CITY OF NEW YORK, maintained, operated and controlled the Police Department within the City of New York.
4. At all times herein mentioned the defendant, THE CITY OF NEW YORK, employed police officers in its Police Department.
5. At all times herein mentioned the police officers employed by the defendant, THE CITY OF NEW YORK, were acting as agents, servants and/or employees of the defendant, THE CITY OF NEW YORK, and were acting within the scope of their employment.

6. At all times hereinafter mentioned, defendant, P.O. LOGAN PAYANO Shield #00816 (hereinafter "PAYANO"), was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

7. Defendant, PAYANO, is sued individually and in his official capacity.

8. At all times hereinafter mentioned, defendant, PAYANO, was acting within the scope of his employment as a police officer employed by the New York City Police Department.

9. At all times hereinafter mentioned, defendant PAYANO, was acting under color of law and authority as a police officer with the New York City Police Department.

10. At all times hereinafter mentioned, defendant, PO ANTHONY ASSENT Shield #00306 (hereinafter "ASSENT"), was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

11. Defendant, ASSENT, is sued individually and in his official capacity.

12. At all times hereinafter mentioned, defendant, ASSENT, was acting within the scope of his employment as a police officer employed by the New York City Police Department.

13. At all times hereinafter mentioned, defendant ASSENT, was acting under color of law and authority as a police officer with the New York City Police Department.

14. That pursuant to section 50-e of the General Municipal Law of the State of New York and on or about January 9, 2017 at approximately 10:34 a.m., a duly verified Notice of Claim, was duly and timely filed with the office of the Comptroller of the defendant CITY, upon an authorized agent designated for service of said Notice of Claim, and at least thirty days have elapsed since the service of said duly verified Notice of Claim, and that the office of the Comptroller of the defendant CITY, or its agents, servants, licensees and/or employees, have failed, refused or neglected to make payment or adjustment thereon.

15. That all conditions precedent have been satisfied by the above stated plaintiff in that said plaintiff has submitted to a municipal hearing pursuant to section 50-h of the General Municipal Law of the State of New York, or has been waived by defendant CITY.

16. That this action is being commenced against defendant CITY within one year and ninety days of the happening of the events described herein and that therefore, this action is being timely commenced.

17. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

**FIRST CAUSE OF ACTION
(State Law False Arrest/False Imprisonment)**

18. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "17" above as if fully set forth herein.

19. That on or about the 12th day of October, 2016, while plaintiff was lawfully present at or near the corner of College Avenue and East 170th Street, Bronx, New York, defendant, THE CITY, its agents, servants and/or employees, intentionally and without legal justification, unlawfully and unreasonably arrested and imprisoned plaintiff.

20. That on or about the 12th day of October, 2016, while plaintiff was lawfully present at or near the corner of College Avenue and East 170th Street, Bronx, New York, defendant, PAYANO, without legal justification, unlawfully and unreasonably arrested and imprisoned plaintiff.

21. That on or about the 12th day of October, 2016, while plaintiff was lawfully present at or near the corner of College Avenue and East 170th Street, Bronx, New York, defendant, ASSENT, without legal justification, unlawfully and unreasonably arrested and

imprisoned plaintiff.

22. That at all times herein mentioned and on or about the 12th day of October, 2016, the plaintiff, DAVID MAJETTE, was falsely arrested and imprisoned by New York City Police Officers, acting as police officers, who were agents, servants and/or employees of the defendant, THE CITY OF NEW YORK, and these police officers were acting within the scope of their agency and/or their employment.

23. At the time of plaintiff's arrest, defendant, PAYANO, was acting within the scope of his employment as an employee of defendant, CITY.

24. At the time of plaintiff's arrest, defendant, PAYANO, was acting under color of law.

25. At the time of plaintiff's arrest, defendant, ASSENT, was acting within the scope of his employment as an employee of defendant, CITY.

26. At the time of plaintiff's arrest, defendant, ASSENT, was acting under color of law.

27. After plaintiff's arrest at the above-mentioned location he was imprisoned.

28. Plaintiff was wrongfully arrested for criminal possession of a controlled substance and criminal sale of a controlled substance.

29. Thereafter, Plaintiff was confined and all charges against him were dismissed.

30. At the time of the unlawful detention and imprisonment, plaintiff had not committed any illegal act.

31. At the time of the unlawful detention and imprisonment, plaintiff had not committed or attempted to commit any crime.

32. That by reason of the foregoing, plaintiff was severely injured and damaged,

rendered sick, sore, lame and disabled; sustained severe nervous shock, psychological injury and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries including loss of liberty and injury to his reputation; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

33. That by reason of the foregoing, the plaintiff, DAVID MAJETTE, has sustained damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

SECOND CAUSE OF ACTION
(42 U.S.C. § 1983)

34. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "33" above as if fully set forth herein.

35. By their conduct and actions in falsely arresting and imprisoning plaintiff; trespassing upon plaintiff; violating plaintiff's rights to equal protection; violating plaintiff's rights to substantive and procedural due process; invading plaintiff's privacy; fabricating an account and/or evidence concerning the arrest of plaintiff; withholding exculpatory evidence; failing to properly investigate; failing to intercede on behalf of the plaintiff and in failing to protect the plaintiff from the unjustified and unconstitutional treatment he received at the hands police officers, defendants, PAYANO and ASSENT, acting under color of law and without lawful justification, intentionally, maliciously, and with a deliberate indifference to or a reckless

disregard for the natural and probable consequences of their acts, caused injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983, the United States Constitution, including its Fourth, and Fourteenth amendments and the Constitution of the State of New York.

36. That defendants, PAYANO and/or ASSENT, violated Plaintiff's civil rights by falsely arresting him in violation of 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.

37. That defendants, PAYANO and/or ASSENT, violated Plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.

38. That defendants, PAYANO and/or ASSENT, violated plaintiff's civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. §1983, of the U.S. Constitution and the Constitution of the State of New York.

39. That the actions of defendants, PAYANO and/or ASSENT, heretofore described, constitute unlawful arrest, detention and imprisonment were designed to and did cause specific and serious bodily harm, pain and suffering to plaintiff in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

40. Defendants, PAYANO and/or ASSENT, deprived plaintiff of his liberty in violation of plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

41. The actions taken by defendants, PAYANO and/or ASSENT, were undertaken under color of law and would not have existed but for said defendants using their official power.

42. As a result of the above-mentioned constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

43. That by reason of the foregoing, the plaintiff, DAVID MAJETTE, has sustained damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

THIRD CAUSE OF ACTION
(42 U.S.C. § 1983 against The City-Monell Claims)

44. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "43" above as if fully set forth herein.

45. That as a result of the foregoing, the defendant, THE CITY OF NEW YORK, through the acts of their Police Officers, agents, servants and/or employees, willfully and wantonly violated the civil rights of the plaintiff, DAVID MAJETTE.

46. That the defendant, THE CITY OF NEW YORK, through its own acts, the acts of their Police Officers, agents, servants and/or employees, deprived the plaintiff, DAVID MAJETTE, of his civil rights under the color of law. They are liable to plaintiff in an action pursuant to Title 42, Section 1983, of the United States Code.

47. That the Police Officers involved in plaintiff's arrest and prosecution,

including defendants, PAYANO and ASSENT, as individuals and through their actions as employees, and other police officers, acting within the scope of their duties, under color of law, deprived the plaintiff, DAVID MAJETTE, of his civil rights, privileges and/or immunities, secured by the Constitution of the United States, and of the State of New York, and they are liable to the plaintiff, pursuant to Title 42, Section 1983, of the United States Code.

48. That the defendant, THE CITY OF NEW YORK, deprived the plaintiff, DAVID MAJETTE, of his civil rights, privileges and/or immunities, secured by the Constitution and the Laws of the United States, including violating his Fourteenth Amendment Right, rights of due process, his First Amendment Right, his Fourth Amendment Right, his property rights, and his right of privacy.

49. That the defendant, THE CITY OF NEW YORK, depriving the plaintiff, DAVID MAJETTE, of his civil rights, acted under color of state and local law.

50. That the defendant, THE CITY OF NEW YORK, depriving the plaintiff, DAVID MAJETTE, of his constitutional rights, acted under color of statute, ordinance, regulation, custom or usage of the Laws of the State of New York, and misused power which they possessed by virtue of State Law.

51. That the defendant, THE CITY OF NEW YORK, acted pursuant to official policy and/or governmental customs.

52. All of the acts by the police defendants described above were carried out pursuant to policies and practices of the City of New York which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant City and its agency, the

NYPD and the New York County District Attorney's Office.

53. At all times material to this complaint, defendant, CITY, had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

54. At all times material to this complaint, defendant, CITY, acting through its Police Department and through the individual defendants, had de facto policies, practices, customs, and usages of failing to properly train, screen, supervise, or discipline employees and police officers, and of failing to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline said defendants.

55. At all times material to this complaint, defendant, CITY, had de facto policies, practices, customs and/or usages of failing to assure that citizens' constitutional rights were protected, including the right not to be wrongfully accused of committing crimes that the police and district attorney knew they had not committed; the right not to be subjected to unreasonable searches and seizures and the right not to be deprived of their liberty without due process of law.

56. All of the acts by the defendants' actions described above, were carried out pursuant to policies and practices of the City of New York which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and under the supervisory authority of the CITY and its Police Department.

57. That by reason of the foregoing, the plaintiff, DAVID MAJETTE, has sustained damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

WHEREFORE, Plaintiff demands a monetary judgement in the form of damages against the Defendant herein on all causes of action, in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action, together with costs and disbursements of this action.

Dated: New York, New York
July 13, 2017


STEVEN C. RAUCHBERG, P.C.
Attorney for Plaintiff
501 Seventh Avenue, Suite 520
New York, NY 10018
(212) 971-9090

ATTORNEY'S VERIFICATION

STEVEN C. RAUCHBERG, Esq. affirms under the penalties of perjury that he is the attorney for plaintiff in the captioned action; that he has read the foregoing Complaint and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters he believes them to be true.

The reason this verification is made by your affirmant and not by the plaintiff herein is that the plaintiff does not reside in the County of New York, where the undersigned has his office.

The sources of your affirmant's information and belief are from conversations had with the plaintiff herein and from the documents in the file.

Dated: New York, New York

July 13, 2017



Steven C. Rauchberg

CERTIFICATION

The undersigned, Steven C. Rauchberg, Esq., an attorney duly admitted to practice law before the Courts of the State of New York, with offices located at 501 Seventh Avenue, Suite 520, New York, N.Y. 10018, does hereby certify pursuant to Sec. 130-1.1-a of the Rules of The Chief Administrator, 22 NYCRR, that I have prepared the annexed Verified Complaint on behalf of my client, that the contents thereof are true to the best of my knowledge, information and belief.

Dated: New York, New York
July 13, 2017


Steven C. Rauchberg